

Court No. - 3

Case :- WRIT - C No. - 20054 of 2017

Petitioner :- Shiv Shankar

Respondent :- U.P. Power Corporation And 4 Others

Counsel for Petitioner :- Dharendra Kumar Srivastav

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Krishna Murari, J.

Hon'ble Siddhartha Varma, J.

Heard learned counsel for the petitioner and Sri Narendra Kumar Tiwari, learned counsel for the respondents no. 2 & 3.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has prayed for quashing of the impugned recovery certificate (annexure-5 to the writ petition) issued by the respondent no. 3.

Learned counsel for the petitioner contends that without making provisional assessment as provided under Section 126 of the Electricity Act, 2003, the respondent no. 3 has straightway issued the impugned recovery certificate for recovering a sum of Rs.2,60,854/- against the petitioner. Learned counsel for the petitioner further contends that in the absence of provisional assessment, the petitioner could not file his objection and his statutory right to submit a reply has been denied to him.

Sri Narendra Kumar Tiwari, learned counsel for the respondents submits that a surprise checking in petitioner's premises was carried out on 20.03.2014 and it was found that he was unauthorizedly using electrical energy for commercial purposes even though, his connection was for residential use only and thereafter, the department determined a sum of Rs.2,85,824/- towards theft of electricity.

Having considered the rival submission advanced on behalf of learned counsel for the parties, this Court finds that there is nothing on record to show that any provisional assessment has been made.

This Court in ***Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ 660 (DB)*** from paras 56 to 64 has considered the provisions of the Electricity Supply Code 2005, to be followed in a case of theft of electricity for assessment.

As the petitioner has not been afforded opportunity of hearing in the matter as is mandatorily warranted under Clause 6.8 (1)(b) of the U.P. Electricity Supply Code, 2005, and even otherwise, no provisional assessment has been made as is required in law, therefore, the impugned

recovery proceeding cannot be sustained and is liable to be set-aside.

Consequently, the writ petition is allowed. The impugned recovery certificated (annexure-5 to the writ petition) for recovery of electric dues Rs. 2,60,854/- and all consequential proceedings thereto are hereby quashed. The respondents are directed to prepare a provisional assessment order and serve it upon the petitioner. The final assessment order will be made after considering petitioner's objection, giving reasons to meet the objections of petitioner in the light of observations made in ***Ashok Kumar (supra)***.

Order Date :- 9.5.2017

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